

Ceida Chavez v. California Automobile Insurance Company, 25CV-0740

Hearing: **Motion to Deem Matters Admitted**
 Motion to Compel Responses to Form Interrogatories
 Motion to Compel Responses to Special Interrogatories
 Motion to Compel Responses to Requests for Production

Date: **July 29, 2026**

Ceida Chavez filed this action in November 2025 against California Automobile Insurance Company. On calendar are Defendant's (1) Motion to Compel Responses to Form Interrogatories, Set One; (2) Motion to Compel Responses to Special Interrogatories, Set One; (3) Motion to Compel Responses to Requests for Production, Set One; and (4) Motion to Deem Matters Admitted. Plaintiff has not filed an opposition.

Form Interrogatories, Special Interrogatories, and Requests for Production: All that need be shown for purposes of a motion to compel initial responses is that the discovery was properly served; that the time to respond has expired; and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 8:1140.)

Defendant's counsel reports they served the written discovery on Plaintiff's counsel on April 24, 2026, and that no responses have been received despite providing an extension to June 5, 2026. This is sufficient evidence to grant the requested relief.

The motions to compel initial responses to the form interrogatories, special interrogatories, and the requests for production are granted. Plaintiff is to serve responses without objections no later than August 14, 2026.

Requests for Admission: Under Code of Civil Procedure section 2033.280 a party may move for an order deeming the RFAs admitted if the party to whom they are directed has failed to serve a timely response. Subdivision (c) of section 2033.280 provides that "[t]he court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220."

Defendant has made the necessary showing entitling it to relief. The Court grants the Motion to Deem Matters Admitted.

Sanctions: Defendant seeks sanctions of \$1,141.00 for the Motion to Compel Responses to the Form Interrogatories; \$1,023.00 for the Motion to Compel Responses to the Special Interrogatories; \$993.50 for the Motion to Compel Responses to the Requests for Production; and \$1,052.50 for the Motion to Deem Matters Admitted. Each sanction request seeks 2 hours for a

reply and hearing appearance. No reply was required and only one hearing appearance is required. Defendant's sanctions requests are reduced accordingly (reduction: 2 hours x \$295 for three motions to compel; 1 hour x \$295 for motion to deem matters admitted).

The Court awards total sanctions of \$2,302.50.

ORDER

The Court grants (1) the Motion to Compel Responses to Form Interrogatories, Set One; (2) the Motion to Compel Responses to Special Interrogatories, Set One, and (3) the Motion to Compel Responses to Requests for Production, Set One. Plaintiff is to provide responses without objections no later than Friday, August 14, 2026.

The Court grants the Motion to Deem Matters Admitted.

The Court awards sanctions in the amount of \$2,302.50. The sanctions are against both Plaintiff and her counsel of record.